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County: los-angeles

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Case Number: 25STCV19412 Hearing Date: July 22, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

SIMON

CHOE, et al.,

Plaintiffs,

vs.

ANNA

KIM, et al.

Defendants.

Case No.:

25STCV19412

Hearing

Date:

July 22, 2026

ORDER
SUSTAINING, IN PART, DEMURRER TO THIRD AMENDED COMPLAINT

I. BACKGROUND

Defendant Anna Kim ("Kim") allegedly defrauded Plaintiffs Simon Choe ("Simon") and Soon Choe ("Soon"), by, in part, coordinating with Defendants Edison Castro ("Castro"), Law Offices of Donald Iwuchukwu ("Iwuchukwu") and Metu Ogike ("Ogike"), to operate fraudulent loan schemes and demand payments for non-existence proceedings. Plaintiffs sue Defendants for six causes of action, including fraud.

On March 9, 2026, Ogike filed the instant demurrer as to Plaintiffs' third amended complaint's ("TAC"). Plaintiffs oppose.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10 states[1]:
"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Ogike requests the Court sustain the demurrer, without leave to amend, as no allegation states sufficient facts to constitute the causes of action.

A. First Cause of Action for Fraud

Ogike first demurrs to the cause of action for fraud, as the TAC is insufficiently pled to meet the heightened specificity and particularity standard. A claim for fraud must plead all the following elements: (1) misrepresentation; (2) knowledge of falsity; (3) intent to induce reliance; (4) justifiable reliance; and (5) resulting damage. (Odorizzi v. Bloomfield School Dist. (1966) 246 Cal.App.2d 123, 128; Wilhelm v. Pray, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1332.) Fraud actions are subject to strict requirements of particularity in pleading. (Committee on Children's Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 216.) Particularity requires facts that show how, when, where, to whom, and by what means the representations were tendered. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

There are four forms of deceit: intentional misrepresentation, negligent misrepresentation, concealment, and failure to perform a promise. (Finch Aerospace Corp. v. City of San Diego (2017) 8 Cal. App. 5th 1248, 1252.) The TAC allege Defendants, including Ogike, are liable for fraud under theories of intentional misrepresentation, concealment and failure to perform a promise. (TAC ¶ 163.)

The TAC alleges that Ogike is the founder of the Law Office of Metu C. Ogike ("Ogike Firm") and that he worked alongside attorney Iwuchukwu on cases at Iwuchukwu's firm, maintaining his own desk and frequently being present in Iwuchukwu's office. (TAC ¶ 5.) On February 6, 2021, Plaintiffs made an initial payment of $15,000 in legal fees to Kim for the services of attorneys Iwuchukwu and Ogike. (TAC ¶ 58.) On March 15, 2021, Plaintiffs made an additional payment of $5,260 to Kim and Iwuchukwu for attorney fees related to transferring the case to the Law Offices of Anthony O. Egbase. (Ibid.) Between 2019 and 2022, Plaintiffs visited Iwuchukwu's office approximately ten times and met with Ogike on these occasions. (TAC ¶ 75.)

Ogike is allegedly the 'architect of the English-language interface of this fraudulent enterprise', functioning as the 'front man' for the fraudulent enterprise. (Ibid.) He allegedly entered into an 'implied contract of professional employment,' with Plaintiffs by failing to correct Kim's representations, which he later breached when 'losing' and abandoning Plaintiffs' case. (TAC ¶ 89.) Ogike alleged specifically fraudulently stated Plaintiffs' money, given to Kim, was spent on a 'House Expert', despite making no payments to an expert witness, and refused to issue a refund accordingly. (TAC ¶ 78.) When Plaintiffs asked for billing statements, Ogike refused and threatened to drop the case. (TAC ¶ 79.) Ogike also allegedly attempted to be relieved as counsel for Plaintiffs without properly notifying Plaintiffs, while filing a false statement that he did serve notice. (TAC ¶ 80.)

The Court does not find the facts, as pled, sufficiently plead at least a claim for fraud under intentional misrepresentation. Fraud via intentional misrepresentation requires: " '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' " (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974.)

Ogike allegedly intentionally misrepresented that Plaintiffs' money had been spent on an expert witness, and was not refundable, in order to avoid Plaintiffs' from requesting a refund, so that Ogike could keep the funds for his personal use. As a result, Plaintiffs were denied funds to which they were rightfully entitled. There is sufficient information as to the who, when, and why to allow Ogike to meaningfully reply to, at least, this portion of the fraud claim.

1. Litigation
Privilege

The Court also will not sustain the demurrer on the basis of litigation privilege. Section 47, subdivision (b) "provides that a 'publication or broadcast' made as part of a 'judicial proceeding' is privileged. This privilege is absolute in nature, applying 'to all publications, irrespective of their maliciousness.' [Citation.] 'The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that [has] some connection or logical relation to the action.' [Citation.] The privilege 'is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.' [Citation.]" (Winslett v. 1811 27th Avenue, LLC (2018) 26 Cal.App.5th 239, 253 [quoting Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1239-1240].)

In Winslet, the Court of Appeal set forth the scope of the litigation privilege as follows:

Traditionally, the privilege has been given 'a broad interpretation' in order to achieve its "principal purpose" to afford litigants and witnesses "the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions." [Citation.] "[C]ourts have emphasized the importance of the litigation privilege's absolute protection of access to the courts, while recognizing that this absolute protection has its costs," since, inevitably, its invocation will sometimes shield "the shady practitioner" along with the honest ones.' [Citation.] "[I]n immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result.” [Citation.]

(Winslett, supra, 26 Cal.App.5th at p. 253 [internal quotes and citations omitted].) The litigation privilege applies to all tort claims except malicious prosecution. (Silberg v. Anderson (1990) 50 Cal.3d 205, 215-216.)

The privilege protects only publications and communication; non-communicative conduct is not privileged. (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1058.) “The key in determining whether the privilege applies is whether the injury allegedly resulted from an act that was communicative in its essential nature.” (Ibid.) For conduct to be communicative, there must be a statement made, a representation offered or some assertive conduct that is a “speech-substitute.” (Booker v. Rountree (2007) 155 Cal.App.4th 1366, 1373.)

Plaintiffs’ allegations that Ogike intentionally lied about hiring of an expert witness to withhold funds for Ogike’s own personal benefit would not fall under litigation privilege, as such statements are not made to achieve the objects of the litigation; nor do they have some connection or logical relation to the action. These statements allegedly were done not to represent Plaintiffs, but in order to personally enrich Ogike. Therefore, litigation privilege is inapplicable.

The Court OVERRULES the demurrer as to this cause of action.

B. Second Cause of Action for RICO/Hobbs Act Violation

The Court previously sustained Ogike’s demurrer to the second cause of action for RICO/HOBBS Act violations without leave to amend. Absent the Court granting a motion for leave to amend to allege said cause of action against Ogike, Plaintiffs are not entitled to revive a claim sustained on demurrer, without leave to amend. (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 612.) As no such leave was granted, this action is subject to demurrer.

C. Third
Cause of Action for Conspiracy

Ogike next demurrs to the cause of action for conspiracy as the TAC has insufficient factual allegations to support a cause of action for conspiracy. Conspiracy liability is a theory of co-equal liability under which certain defendants may be held liable for an independent civil wrong committed by others. (Navarette v. Meyer (2015) 237 Cal.App.4th 1276, 1277.) To the extent that it is its own cause of action, the elements of an action for civil conspiracy are (1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from an act done in furtherance of the common design. (Thompson v. California Fair Plain Association (1990) 221 Cal.App.3d 760, 767.)

“[T]he requisite concurrence and knowledge ‘may be inferred from the nature of the acts done, the relation of the parties, the interests of the alleged conspirators, and other circumstances.’ Tacit consent as well as express approval will suffice to hold a person liable as a coconspirator.” (Wyatt v. Union Mortgage Co. (1979) 24 Cal.3d 773, 785, internal citations omitted.) A cause of action for civil conspiracy may not arise, however, if the alleged conspirator, though a participant in the agreement underlying the injury, was not personally bound by the duty violated by the wrongdoing and was acting only as the agent or employee of the party who did have that duty. (Doctors' Co. v. Superior Ct. (1989) 49 Cal. 3d 39, 44.)

The TAC alleges Iwuchukwu and Ogike conspired with Kim to solicit and defraud Korean clients via “Korean Day”, a day in which legal services are offered to Korean-speaking clients via Kim’s translation. (TAC ¶ 88.) Plaintiffs attended at least three “Korean Day” meetings, in which Ogike was presented as the “head attorney”, “managing partner”, and “big boss” of the firm. (TAC ¶ 89.) However, it is unclear if Plaintiffs obtained legal services on these days resulting in damages to Plaintiffs. Instead, Plaintiffs allege that by allowing himself to be introduced as a “managing partner”, he created an implied contract of professional employment. (Ibid.) This contract was then breached by Ogike “not merely losing the case, but by abandoning the Plaintiffs.” Additionally, the TAC alleges Defendants forced clients to make non-refundable fees, which were subject to illegal fee splitting and not properly placed in a legitimate client trust account. (TAC ¶ 90.)

The Court finds, the allegations are sufficiently pled to present a cause of action for conspiracy. Plaintiffs present two separate actionable theories of conspiracy: Ogike and Kim's false persona, which was agreed upon Ogike affirmatively echoing Kim's false representation, and Defendants' improper fee distribution, which was allegedly agreed upon between Ogike and Kim. Both allegedly resulted in damage to Plaintiffs, whose funds given to Ogike as part of this conspiracy were not properly used to fund Plaintiffs' legal case, from an act done in further design of enriching all parties to the conspiracy.

The Court OVERRULES the demurrer as to this cause of action.

D. Fourth Cause of Action for Gross Negligence

Ogike next demurs to the fourth causes of action for gross negligence on the basis it is insufficiently pled. The Court ruled on these issues when addressing Ogike's demurrer to the second amended complaint ("SAC"), finding the SAC alleged sufficient facts to meet the basic standards, and that the existence of gross negligence is generally a question for the trier of gact. (See January 29, 2026, minute order.) The SAC has not been amended in such a manner that raised a new potential argument regarding these issues; therefore, Ogike has no basis to demurrer on these grounds. (See § 430.41, subd. (b): "A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.")

The Court OVERRULES the demurrer as to these issues, as the Court has already addressed these issues and Ogike has no legal authority to present new argument.

E. Breach of Agreement (Contract)

Ogike requests the Court strike the fifth cause of action, as the complaint does not sufficiently state facts alleging

Plaintiffs and Ogike entered into a contract. The elements of a cause of action for breach of contract are: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff." (Coles v. Glaser (2016) 2 Cal.App.5th 384, 391, internal quotations omitted.) In pleading the existence of a contractual relationship, "the complaint must indicate on its face whether the contract is written, oral, or implied by conduct. (§ 430.10, subd. (g).)." (Otworth v. Southern Pac. Transportation (1985) 166 Cal.App.3d 452, 458-59.)

For a written contract, the plaintiff may plead it "by its terms – set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference – or by its legal effect." (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489 abrogated on other grounds in Freeman v. Quicken Loans Inc. (2012) 566 U.S. 624.) To plead a contract's legal effect the plaintiff's pleading must include "the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions." (Ibid.)

The TAC alleges that, although Ogike's name did not exist on the subject contract—a retainer agreement—a valid contract existed between Ogike and Plaintiffs because Ogike met with Plaintiffs, accepted their files and payment, and gave legal advice. (TAC ¶ 89.) The retainer agreement was between Plaintiffs and Iwuchukwu for legal representation in a landlord-tenant dispute against Young Retuer. (TAC ¶ 135.) Ogike allegedly broke the 'implied contract of professional employment' by losing the case and abandoning Plaintiffs. (TAC ¶ 89.)

There are insufficient allegations to establish the terms of the contract between Ogike and Plaintiffs, as the TAC clearly establishes the retainer agreement did not include Ogike. Rather, it is an 'implied contract of professional employment' that is at issue, the content of which is not pled. It is unclear what performance, if any, Plaintiffs undertook pursuant to this contract, or if Ogike's alleged breach constituted a breach of this contract. It is also unclear what, if any, Plaintiffs suffered from this alleged breach of contract.

Therefore, the demurrer to the fifth cause of action is SUSTAINED.

F. Sixth

Cause of Action for Quasi Contract – Conversion/Restitution/Unjust Enrichment

Ogike requests the Court sustain the demurrer as to this cause of action as there are no clear allegations of Ogike being unjustly enriched. A claim for unjust enrichment lies where there is receipt of a benefit and the unjust retention of the benefit at the expense of another. (Peterson v. Cellco Partnership (2008) 164 Cal.App.4th 1583, 1593.) While unjust enrichment is not a cause of action, courts have stated that unjust enrichment is synonymous with restitution and allowed recovery where the plaintiff asserts a proper basis for recovering restitution. (See Durrell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1370; McBride v. Boughton (2004) 123 Cal.App.4th 379, 387-88.)

Under the law of restitution, an individual may be required to make restitution if he is unjustly enriched at the expense of another. (Ghirardo v. Antonioli (1996) 14 Cal.4th 39, 51.) A person is enriched if he receives a benefit at another's expense. (Ibid.) The term “benefit” denotes any form of advantage; thus, a benefit is conferred not only when one adds to the property of another, but also when one saves the other from expense or loss. (Ibid.) Yet, even when a person has received a benefit from another, he is required to make restitution only if the circumstances of its receipt or retention are such that, as between the two persons, it is unjust for him to retain it. (Ibid.)

The TAC alleges all Defendants were unjustly enriched at the expense of Plaintiffs for “failing to perform their contractual obligations based on monies given to Defendants.” (TAC ¶ 224.) While Plaintiffs have not sufficiently alleged Ogike had any contractual obligation to Plaintiffs, Ogike’s unjust enrichment allegedly is derived from the fee sharing between Defendants. (TAC ¶ 80.) Unjust payments made to Kim allegedly were split between all Defendants, including Ogike.

The facts as pled allege Ogike was unjustly enriched by received a portion of Kim’s allegedly ill-gotten gains from Plaintiffs. A cause of action for unjust enrichment only requires a person being enriched at the unjust expense of another. Therefore, this cause of action is sufficiently pled. The Court overrules the demurrer as to this cause of action.

G. Leave to Amend

The burden is on a plaintiff to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Plaintiffs do not request leave to amend. As Plaintiffs have now had four opportunities to provide a well pled complaint as to all causes of action, absent request and information from Plaintiffs, the Court does not find a basis to grant leave to amend.

IV. CONCLUSION

Defendant Metu Ogike's demurrer to Plaintiffs' Third Amended Complaint is SUSTAINED, in part. The Court sustains the demurrer as to the second and fifth causes of action, without leave to amend.

The demurrer is otherwise OVERRULED.

Ogike is ordered to give notice.

DATED:
July 22, 2026

____

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

• Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

• If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

• Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

• If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.